

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRSP067588: IN THE MATTER OF EDWARD JAMES REED

09/10/2026 in Department J6

Hearing on Spousal Property Petition

Petitioner and decedent are husband and wife. The decedent's interest in the property was received by him pursuant to Grant Deed dated September 29, 2023, and recorded October 2, A 2003, as Document No. 0203211978 wherein the property was granted to EDWARD REED AND ANITA REED, husband and wife. A copy of the transfer deed is attached hereto as Exhibit "A"

Petitioner states the Deed was silent as to vesting. For this reason the decedent is the owner of a 50% interest in and to said property, which interest passes to decedents surviving spouse. Petitioner and decedent intended said property to be owned jointly as community property. However, the failure to include vesting was a scrivener's error on the part of the part of the title company that prepared the transfer deed. the deed failed to include the vesting language "as joint tenants". For this reason, an Affidavit of Death Of Joint Tenant cannot be used to confirm that ANITA REED is the surviving spouse and the sole owner of the property.

Petitioner attaches a copy of the will which leaves decedent's community property subject to nonprobate transfer to petitioner. (See will, Art. 5th)

Decedent's will states:

"It is my intention to dispose of by this Will all real and personal property which I have the right to dispose of by Will, and it is my intention to exercise any power of appointment which I may have. I hereby revoke any previously given consent to any nonprobate transfer described in Division 5 of the California Probate Code and devise to my community property trust estate in the REED FAMILY TRUST any community property interest in any asset subject to such transfer." (Will, Art. III)

Petitioner states that the will leaves decedent's community property subject to nonprobate transfer to petitioner.

Petitioner states that the Will, at Article V states that decedent leaves the decedent's community property subject to nonprobate transfer to petitioner.

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Article V states: “I have, except as otherwise provided in this Will and the trust, intentionally and with full knowledge declined to provide for that any heirs of mine who may be living at my death, and I direct such persons shall take no part of my estate except as provided in the trust.

The will states that it leaves decedent’s community property to the Reed Family Trust.

The court intends to deny the petition.